

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 03/11/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C24-02490

CASE NAME: SCOTT DINSDALE VS. CARDIGAN, INC.
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*CASE MANAGEMENT CONFERENCE

FILED BY:

<u>*TENTATIVE RULING:*</u>
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This case management conference ("CMC") trails the discovery motion to be heard on line 20. If the motion is unopposed, no appearance is required. The CMC will be continued to August 3, 2026 at 8:30 a.m if the motion is unopposed.

2. 9:00 AM CASE NUMBER: C25-00687

CASE NAME: MIHAELA CROSSMAN VS. GREG WALLACE
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*FURTHER CASE MANAGEMENT CONFERENCE TO TRAIL SET ASIDE VOID DEFAULT AND QUASHING SUMMONS FOR LACK OF PERSONAL JURISDICTION
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FILED BY:

TENTATIVE RULING:

Plaintiff Mihaela Crossman dismissed this case without prejudice on March 3, 2026. This CMC is vacated. Line 15 is vacated. No appearance is required at the hearing on March 11, 2026.

3. 9:00 AM CASE NUMBER: C25-00711

CASE NAME: ROBERT MURLEY VS. ROBERT RICHIE

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This CMC is continued to August 3, 2026 at 8:30 a.m. No appearance is required on March 11, 2026.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-00908

CASE NAME: ABDO NASSER VS. DOES 1 TO 50

***HEARING ON MOTION IN RE: LEAVE TO FILE CROSS-COMPLAINT**

FILED BY: T-MOBILE USA, INC.

TENTATIVE RULING:

Summary

Defendant T-Mobile USA, Inc. and T-Mobile West LLC's ("T-Mobile") Motion for Leave to File Cross-Complaint filed on December 4, 2025 is unopposed and is **granted** as set forth herein. No appearance is required at the hearing on March 11, 2026.

Defendant MW Cell REIT 1 LLC ("MWC") filed a notice of Non-Opposition. Plaintiff Abdo Nasser ("Plaintiff") did not file a timely opposition.

Analysis

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure of any party to timely oppose this motion is a deemed to be their consent to the granting of this motion.

Ruling

1. T-Mobile's Motion for Leave to file Cross-Complaint against MWC and Plaintiff is **granted**.
2. The Court approves the form of the Proposed order lodged on November 21, 2025, with the following modification: The proposed complaint submitted as Exhibited M to the Declaration